

# Special Notice

**SUBJECT\*** Notice of Intent to Sole Source Urgent and Emergent Dispense of Pharmacy Medications Overton Brooks VA Medical Center SHREVEPORT, LA

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## GENERAL INFORMATION

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| <b>CONTRACTING OFFICE'S ZIP CODE*</b> | 77056-5643                                                                                                                                               |
| <b>SOLICITATION NUMBER*</b>           | 36C25626Q0770                                                                                                                                            |
| <b>RESPONSE DATE/TIME/ZONE</b>        | 05-13-2026 15:00 CENTRAL TIME, CHICAGO, USA                                                                                                              |
| <b>ARCHIVE</b>                        | 9 DAYS AFTER THE RESPONSE DATE                                                                                                                           |
| <b>RECOVERY ACT FUNDS</b>             | N                                                                                                                                                        |
| <b>PRODUCT SERVICE CODE*</b>          | Q702                                                                                                                                                     |
| <b>NAICS CODE*</b>                    | 522310                                                                                                                                                   |
| <b>CONTRACTING OFFICE ADDRESS</b>     | Department of Veterans Affairs<br>Network Contracting Office 16<br>Galleria Financial Center<br>5075 Westheimer Road, Suite 750<br>Houston TX 77056-5643 |
| <b>POINT OF CONTACT*</b>              | Contract Specialist<br>Jeneice Matthews<br>jeneice.matthews@va.gov                                                                                       |

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## ADDITIONAL INFORMATION

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|---------------------------------------|-----------------------------------------------------|
| <b>AGENCY'S URL</b>                   | <a href="https://www.va.gov">https://www.va.gov</a> |
| <b>URL DESCRIPTION</b>                | Department of Veterans Affairs                      |
| <b>AGENCY CONTACT'S EMAIL ADDRESS</b> | jeneice.matthews@va.gov                             |
| <b>EMAIL DESCRIPTION</b>              | Special Notice: 36C25626Q0770                       |

# Special Notice

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## DESCRIPTION

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### Notice of Intent to Sole Source

The Department of Veteran Affairs (VA), Veterans Health Administration, Network Contracting Office 16 in Houston, Texas 77030, intends to negotiate a sole source Firm-Fixed Price contract as a follow on for procurement titled: Urgent and Emergent Dispense of Pharmacy Medications for the Overton Brooks VA Medical Center located in Shreveport, Louisiana with Heritage Health Solutions, Inc. for a base period of twelve (12) months, with four (4) additional, 12 month option periods to be exercised at the discretion of the government; and, in accordance with 41 U.S.C. §3304(a)(1) as implemented by FAR 6.302-1 only one responsible source and no other supplies or services will satisfy agency requirements.

This is not a request for competitive offers and no solicitation is available. Market research has determined that these items are highly specialized, are only available from the original source without an unacceptable delay or duplication of cost and no other type of items will satisfy agency requirements. The government intends to award the contract with an anticipated date of 30 September 2026 to Heritage Health Solutions, Inc. 750 Canyon Dr STE 120 Coppell, TX 75019-4021 UEI: RQ68XNJUBBV5. The intended procurement will be classified under North America Industry Classification System (NAICS) 522310 Mortgage and Nonmortgage Loan Brokers with a small business size standard of \$15.0 million.

THIS NOTICE OF INTENT IS NOT A SOLICITATION OR REQUEST FOR COMPETITIVE QUOTES. However, interested parties may identify their interest and capability to respond to this requirement no later than the date/time indicated below. A determination not to compete this requirement, based upon responses to this notice, is solely within the discretion of the government. Information received will normally be considered solely for determining whether to conduct a competitive procurement. The Department of Veterans Affairs will NOT be responsible for any costs incurred by interested parties in responding to this notice of intent. Only written responses will be considered. All responses from responsible sources will be considered. As a result of analyzing responses to this notice of intent, the Government shall determine if a solicitation will be issued. Any prospective contractor must be registered in the System for Award Management (SAM) to be eligible for award.

Interested parties are encouraged to furnish information by email only with "RESPONSE TO NOTICE OF INTENT TO SOLE SOURCE 36C25626Q0770" in the subject line. All documents submitted will not be returned. Responses to this notice must be supported with clear and convincing evidence to clearly be able to provide the services outlined in this notice and sent via email to Jeneice Matthews jeneice.matthews@va.gov NO LATER THAN May 13, 2026 at 3:00PM Central Standard Time.

## **Statement of Work**

### **1. General Overview**

- a. The Overton Brooks Medical Center (OB VAMC), 510 East Stoner Avenue, Shreveport, LA 71101 requires an external vendor with the capability to dispense prescription medications for Veteran patients served by the OB VAMC and the below listed Community Based Outpatient Clinics (CBOCs) during urgent and emergent situations where OBVAMC and/or its CBOCs and internal pharmacies may be unavailable due to natural or manmade disasters as well as first-fill pharmacy services for patients with an urgent or emergency need for medication.

### **2. Definitions and Acronyms**

- a. Overton Brooks VA Medical Center (OBVAMC)
- b. Community Based Outpatient Clinics (CBOCs)

### **3. Place of Performance**

- a. Overton Brooks VA Medical Center, 510 E. Stoner Avenue, Shreveport, LA 71101.
- b. Monroe Community Based Outpatient Clinic 1691 Bienville Drive Monroe, Louisiana 71201.
- c. Texarkana Community Based Outpatient Clinic 910 Realtor Road Texarkana, Arkansas 71854.
- d. Longview Community Based Outpatient Clinic 1005 North Eastman Road Longview Texas 75601.

### **4. (Tentative) Period of Performance and Schedule**

- a. Contract period of performance dates:
  - i. Base Period: October 01, 2026 – September 30, 2027
  - ii. Option Period I: October 01, 2027 – September 30, 2028
  - iii. Option Period II: October 01, 2028 – September 30, 2029
  - iv. Option Period III: October 01, 2029 – September 30, 2030
  - v. Option Period IV: October 01, 2030 – September 30, 2031
- b. Monday – Saturday: 8am-6pm CST
- c. CBOC's Monday – Friday: 8am – 4:30pm CST

### **5. Equipment List**

- a. No physical equipment is required.

### **6. Contractor Requirements**

- a. Hours of Service: The contractor at a minimum will provide pharmaceutical services from 8:00 a.m. to 6:00 p.m. Monday through Saturday. The CBOCs usual hours of operation are from 8 – 4:30 p.m., Monday through Friday.
- b. Dispensing pharmacies must be able to accept the written prescriptions on VA Form 10-2577F, Security Prescription Form. Should the state in which the dispensing pharmacy operate require other than the VA Form 10-2577F, Security Prescription Form, it will be the contractor's responsibility to provide the VA Medical Center, delegated Point of Contact (POC), with

the regulation/requirement ordering addresses, and ordering information needed to provide the CBOC with the proper security form.

- c. **OBVAMC** patients must be able to pick up their medication at minimum from pharmacies in the CVS Caremark, Walgreens, Walmart, and Rite Aid networks.
- d. Medications dispensed will be generic medications whenever possible. Brand name drugs to be dispensed only if no generic form of the drug exists in the marketplace.
- e. Medications to be covered under this contract which typically should be started immediately or should not have an interruption in therapy and are on the VA Urgent/Emergent formulary include
  - i. Antibiotics
  - ii. Acute care pain medications
  - iii. Insulin
  - iv. Indications that require monitoring levels (e.g., valproic acid)
  - v. Medications that may have rebound or withdrawal effects (e.g., selective serotonin reuptake inhibitors, clonidine, and beta-blockers)
  - vi. Albuterol inhalers or nebulizer solution
  - vii. other medications deemed appropriate under the Mission Act
- f. A Veteran patient's supply will be limited to a maximum of 14 days except in the instance that the drug is in a discrete package and cannot be dispensed in a smaller quantity than the package size (EX: inhaler, dosepak, insulin vial).
- g. This contractual arrangement is not to be utilized for non-urgent/emergent medications except for Mission Act prescriptions.
- h. This contract is not to be utilized for refills except for medications that should not have an interruption in therapy as described above.
- i. The contractor must follow the national VA formulary but also be able to allow for custom formulary edits by OB VAMC, including the ability to restrict dispensing of certain products. These edits must take effect within two business days.
- j. VA beneficiaries will pick up their prescriptions at the dispensing pharmacy. No prescriptions are to be mailed or delivered.
- k. The contractor is responsible for assuring that all persons, whether they be employees, agents, sub-contractors, or anyone acting for or on behalf of the contractor, are properly licensed at all times under applicable state law and/or regulations and may be subject to privileging and or background checks by the VA.
- l. The contractor shall provide Pharmacy Management Services to include traditional prescription screening, dispensing and counseling services (by a registered and licensed pharmacist) to eligible veterans.
- m. Printed drug information will be provided to each patient to supplement verbal instructions. These services will require a medication history and check for allergies, interactions and duplications.

- n. Pharmacies authorized to fill prescriptions under the contractor's plan must agree to the following conditions:
- i. The contractor and its contract pharmacies shall keep all information concerning VA beneficiaries confidential and shall not release or disclose information to any person, except as authorized in writing and according to all applicable laws. The Privacy Act of 1974, public Law 93-579 applies to this contract.
  - ii. Representatives of the VA are authorized to visit the premises of any pharmacy filling VA prescriptions under the contractor's plan during business hours for the purpose of auditing and evaluation, which may include the inspection of clinical records. VA representative shall give access during regular business hours, and upon reasonable notice, to such books, records, invoices, and prescription files as deemed necessary to verify claim information, prescription volume, and the usual and customary charges to the general public for covered prescriptions.
  - iii. Contract pharmacies shall maintain a log of VA prescriptions filled and have the patient sign next to each prescription number for each prescription received. A copy of the log shall be maintained at the contract pharmacy and be readily accessible for random VA inspection.
  - iv. All adverse drug events reported to the contractor's pharmacies by beneficiaries of the VA will be reported to Pharmacy Services at OBVAMC in Shreveport, LA. Adverse drug events include dispensing errors, drug allergies, and adverse drug reactions.
  - v. Pharmaceutical care provided to beneficiaries under this contract shall meet all standards applicable to the current Joint Commission accreditation manual for Ambulatory Care/Pharmaceutical Services.
- o. Medical supplies such as catheters, ostomy supplies, and wound care supplies for outpatients are to be covered.
- p. Pharmaceutical compounding services are to be covered when no commercial product is available. All compounding must be performed by Pharmacy Compounding Accreditation Board (PCAB)-accredited pharmacies.
- q. Schedule of Insurance: The contractor shall procure and maintain for the entire contract period: Workmen's Compensation and employer's general liability Insurance. Prior to contract award, the contractor shall certify to the Contracting Officer in writing and provided documentation that the required insurance has been obtained. The parties agree that such personnel shall not be considered a VA employee for any purpose and shall be considered employees of the contractor.
- r. Price Schedule: The contract rate is an all-inclusive rate. No separate fees will be allowed for such incidental costs of malpractice insurance coverage, supplies, equipment, etc. The price for the medications will be based on a negotiated percentage of the Average Wholesale Price (AWP)

and a dispensing fee. The total price charge to the VA shall not exceed that charged to the general public and shall not exceed the price charged by the contractor's lowest third-party reimbursement plan.

- s. Contractor shall provide dispensing fee prescription and discounts offered, as well as indicate the AWP source (Blue Book, Medispan, or Red Book) it is using to base their discount on after aware to the COR.
- t. Environment of Care: The contractor shall maintain a clean and safe environment always. Contracting with Parties Listed on the OIG List of Excluded Individuals/Entities: In accordance with HIPAA and the Balanced Budget Act (BBA) of 1977, the Office of Inspector General has established a list of parties and entities excluded from Federal health care programs. Specifically, the listed parties and entities may not receive Federal payments due to fraud and/or abuse of the Medicare and Medicaid programs. The list of excluded individuals/entities can be found on the OIG web site at [www.hhs.gov/oig](http://www.hhs.gov/oig). At the signing of the contract, the contractor is affirming that OIG site has been reviewed and that none of the contractor's employees are on this list.
- u. Payments shall be processed monthly, in arrears, upon submission of a properly prepared invoice.
- v. Invoices: The monthly summary invoice shall include a subtotal of each clinic with the number of scripts written at that clinic and the overall costs. There shall also be an attached spreadsheet that reflects: Patient's name, last 4 of social security number, medication, days fill, total medication dispensed and cost for each of the clinics.
- w. The Government reserves the right to fill any prescription covered under this contract using its own resources and/or staff.
- x. Under the authority of Public Law 104-262 and 38 USC 8153, the contractor agrees to provide Health Care Resources in accordance with the terms and conditions stated herein, to furnish the services and prices specified in this contract.

## **7. Applicable Documents**

- a. In the performance of the tasks associated with this contract, the Contractor shall comply with the following requirements.
  - i. N/A

## **8. General Requirements**

- a. It shall be understood that, throughout performance of the contract, the Contractor's personnel, while on VA property, shall adhere to all requirements and regulations that govern the VA Health Care System and its property.
- b. Among all other requirements, the VA Health Care System and its property is now entirely smoke-free.

## **9. National Archives and Records Administration (NARA) Records Management Language for Contracts**

- a. Citations to pertinent laws, codes and regulations such as 44 U.S.C. Chapter 21, 29, 31 and 33; Freedom of Information Act (5 U.S.C. 552); Privacy Act (5 U.S.C. 552a); 36 CFR Part 1222 and Part 1228.
- b. Contractor shall treat all deliverables under the contract as the property of the U.S. Government for which the Government Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest.
- c. Contractor shall not create or maintain any records that are not specifically tied to or authorized by the contract using Government 'IT' equipment and/or Government records.
- d. Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected by the Freedom of Information Act.
- e. Contractor shall not create or maintain any records containing any Government Agency records that are not specifically tied to or authorized by the contract.
- f. The Government Agency owns the rights to all data/records produced as part of this contract.
- g. The Government Agency owns the rights to all electronic information (electronic data, electronic information systems, electronic databases, etc.) and all supporting documentation created as part of this contract. Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.
- h. Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format [paper, electronic, etc.] or mode of transmission [e-mail, fax, etc.] or state of completion [draft, final, etc.].
- i. No disposition of documents will be allowed without the prior written consent of the Contracting Officer. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the agency records schedules.
- j. Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any sub-contractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

## **Information Security and Privacy**

## **1. GENERAL**

This entire section applies to all acquisitions requiring any Information Security and Privacy language.

Contractors, contractor personnel, subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

## **2. VA INFORMATION CUSTODIAL LANGUAGE.**

This entire section applies to all acquisitions requiring any Information Security and Privacy language.

- a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter "contract") unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General. The primary clause used to define computer software license (not data/intellectual property first produced under this contractor or order) is FAR 52.227-19, Commercial Computer Software License.
- b. Information made available to the contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General.
- c. VA information will not be co-mingled with any other data on the contractor's information systems or media storage systems. The contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
- d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

- e. The contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.
- f. The contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- h. The contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- i. The contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.
- k. Notwithstanding the provision above, the contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality-assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the contractor is in receipt of a court order or other requests for the above-mentioned information, the

contractor shall immediately refer such court order or other requests to the VA CO for response.

- l. Information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.
- m. Any data destruction done on behalf of VA by a contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- n. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, Guidelines for Media Sanitization prior to termination or completion of this contract. If directed by the COR/CO, the contractor shall return all Federal Records to VA for disposition.
- o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

### **3. SECURITY INCIDENT INVESTIGATION.**

This entire section applies to all acquisitions requiring any Information Security and Privacy language.

- a. The contractor, subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the

VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the contractor, subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD

- b. To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:
  - 1) The date and time (or approximation of) the Security Incident occurred.
  - 2) The names of individuals involved (when applicable).
  - 3) The physical and logical (if applicable) location of the incident.
  - 4) Why the Security Incident took place (i.e., catalyst for the failure).
  - 5) The amount of data belonging to VA believed to have been compromised.
  - 6) The remediation measures the contractor is taking to ensure no future incidents of a similar nature.
- c. After the contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The contractor, subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.
- d. VA IT contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.
- e. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

- f. The contractor shall comply with VA Handbook 6500.2, Management of Breaches Involving Sensitive Personal Information, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the contractor is deemed to have discovered a data breach when the contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the contractor/subcontractor processes or maintains under the contract; the contractor shall pay liquidated damages to the VA as set forth in clause 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

**REFERENCE (S):**

1. VA Affairs Handbook 6500, Risk Management Framework for VA Information Systems – Tier 3: VA Information Security Program, 10 Mar 2015.
2. Veterans Health Administration Procurement Manual (VHA PM) – 11/3/2014.
3. VA Handbook 1901.01, Health Information Management and Health Records – 19 Mar 15.
4. VHA Handbook 1605.5, Business Associate Agreements – 22 July 2014
5. Privacy Act of 1974 (5 U.S.C. 552a).